



CHAPTER liv.

An Act to authorise the Paignton Urban District Council A.D. 1911.
to construct additional waterworks to make further
provision with respect to the water supply and local
government of the district and for other purposes.

[18th August 1911.]

WHEREAS the urban district of Paignton in the county of Devon (in this Act called "the district") is under the local government of the urban district council of Paignton (in this Act called "the Council"):

And whereas the Council are the owners of waterworks and supply water within the district:

And whereas by the Paignton Urban District Water Act 1900 (in this Act called "the Act of 1900") the Council were authorised to construct and maintain in the parishes of Holne and Marldon in the said county the reservoirs and other works therein referred to and to take the streams and waters therein mentioned and also to enter into agreements with any local authority company or person to supply water in bulk on certain conditions:

And whereas in pursuance of the said powers the said works have been constructed and agreements entered into with the councils of the neighbouring urban districts of Brixham and Teignmouth and the rural districts of Newton Abbot and Totnes (in this Act called "the Brixham Council" "the Teignmouth Council" "the Newton Abbot Council" and "the Totnes Council" respectively) and the Council by virtue of the said agreements are under obligation to give and are giving large supplies of water in bulk to the said districts:

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And whereas under the provisions of an agreement dated the fifth day of July one thousand nine hundred and four and made between the Council of the one part and the Teignmouth Council of the other part the Teignmouth Council may on complying with certain conditions compel the Council to lay a duplicate main for the purpose of giving an increased supply of water to the Teignmouth district:

And whereas the supply of water which can be brought by the present line of pipes from their existing source of supply is inadequate to meet the growing needs and demands of the district and the obligations of the Council under the said agreements and it is expedient that they should be authorised to construct and use in connexion with their water undertaking the additional line of pipes and other waterworks in this Act described:

And whereas it is expedient that such further provisions as are in this Act contained should be made with respect to the water undertaking of the Council:

And whereas it is expedient that further powers be conferred upon the Council for the regulation of streets and buildings sewers and drains and other sanitary matters and otherwise in relation to the health local government regulation and improvement of the district:

And whereas the following adoptive Acts are in force within the district (that is to say):—

The Infectious Disease (Prevention) Act 1890 Parts I. II. and III. of the Public Health Acts Amendment Act 1890 the Private Street Works Act 1892 and the following provisions of the Public Health Acts Amendment Act 1907 are also in force within the district (that is to say) Part II. (except sections 15 19 21 23 30 and 31) Part III. (except sections 43 to 47) Part IV. (except sections 52 53 54 and 67) Part VI. section 86 of Part VII. and sections 93 94 and 95 of Part X.:

And whereas it is expedient that the Council should be empowered to borrow money for the construction of the waterworks by this Act authorised and for other purposes of this Act and that better provision should be made as in this Act mentioned in regard to the loans of the Council and other financial matters:

And whereas estimates have been prepared by the Council for the purchase of land for and the execution of the water-works by this Act authorised and such estimates amount to the sum of twenty-seven thousand five hundred pounds and the several works included in the said estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years : A.D. 1911.

And whereas an absolute majority of the whole number of the Council at a meeting held on the twenty-first day of November one thousand nine hundred and ten after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the *Paignton Observer* a local newspaper circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate :

And whereas such resolution was published twice in the *Paignton Observer* a newspaper circulating in the district and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the thirtieth day of January one thousand nine hundred and eleven being not less than fourteen days after the deposit of the Bill for this Act in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas plans and sections describing the lines situations and levels of the works by this Act authorised and also showing the lands by this Act authorised to be acquired compulsorily and a book of reference containing the names of the owners or reputed owners and lessees or reputed lessees and occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited

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A.D. 1911. with the clerk of the peace for the county of Devon and are
— in this Act referred to as the deposited plans sections and book
of reference :

May it therefore please Your Majesty that it may be enacted
and be it enacted by the King's most Excellent Majesty by and
with the advice and consent of the Lords Spiritual and Temporal
and Commons in this present Parliament assembled and by the
authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Paignton Urban District
Council Act 1911.

Incorpora-
tion of Acts.

2. The following Acts and parts of Acts (so far as the
same are applicable for the purposes and are not inconsistent
with the provisions of this Act) are hereby incorporated with
this Act (namely) :—

The Lands Clauses Acts (except section 127 of the Lands
Clauses Consolidation Act 1845) :

The Waterworks Clauses Acts 1847 and 1863 except—

(A) The words “with the consent in writing of the
“ owner or reputed owner of any such house or of the
“ agent of such owner” in section 44 of the Water-
works Clauses Act 1847 ;

(B) Sections 75 to 82 of the Waterworks Clauses Act
1847 with respect to the amount of profit to be received
by the undertakers when the waterworks are carried on
for their benefit and section 83 relating to accounts.

Interpreta-
tion.

3. In construing this Act the following words and expres-
sions have the meanings hereby assigned to them respectively
unless there be something in the subject or context repugnant
to such construction (that is to say) :—

“The district” means the urban district of Paignton ;

“The Council” means the urban district council of the district ;

“The clerk” “the surveyor” “the medical officer” and
“the inspector of nuisances” respectively mean the
clerk the surveyor the medical officer of health and

the inspector of nuisances appointed by the Council A.D. 1911.
in pursuance of the powers of any public Act and
“medical officer” includes any person duly authorised
to act temporarily as medical officer of health;

“The Act of 1898” means the Paignton Improvement Act
1898;

“The Act of 1900” means the Paignton Urban District
Water Act 1900;

“The district fund” and “the general district rate” mean
respectively the district fund and general district rate
of the district;

“Revenues of the Council” includes the revenues of the
Council from time to time arising from any lands
property water or other undertakings or property of
the Council and rates or contributions leviable by or
on the order or precept of the Council;

“Daily penalty” means a penalty for each day on which
any offence is continued after conviction thereof;

“Infectious disease” means any infectious disease to which
the Infectious Disease (Notification) Act 1889 applies
for the time being within the district;

“The water undertaking” means the water undertaking
of the Council under the Act of 1900 and this Act;

“Statutory security” means any security in which trustees
are for the time being by or under any Act of Parlia-
ment passed or to be passed authorised to invest trust
money and any mortgage bond debenture debenture
stock stock or other security authorised by or under
any Act of Parliament passed or to be passed of any
county council or municipal corporation or other local
authority as defined by section 34 of the Local Loans
Act 1875 but does not include annuities rentcharges or
securities transferable by delivery or any securities of
the Council;

“Statutory borrowing power” means any power whether or
not coupled with a duty of borrowing or continuing on
loan or re-borrowing money or of redeeming or paying
off or creating or continuing payment of or in respect
of any annuity rentcharge rent or other security repre-

A.D. 1911. sending or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government Department made or given or to be made or given by authority of any Act of Parliament passed or to be passed.

Terms to which meanings are assigned by the Acts wholly or partially incorporated with this Act or by the Public Health Acts have the same respective meanings unless varied by this Act or unless there is something in the subject or context repugnant to such construction and in the Acts so incorporated with this Act the expressions "the undertakers" and "the promoters of the undertaking" shall for the purposes of this Act mean the Council.

Limits of
Act.

4. The limits of this Act for all purposes except where otherwise expressed or implied shall be the district.

PART II.

WATER.

Power to
construct
new water-
works.

5. Subject to the provisions of this Act the Council may make and maintain wholly in the county of Devon and in the lines and situations and upon the lands delineated on the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections the waterworks and other works following (that is to say):—

Work No. 1 A filter house and filters situate on lands belonging to the Council in the parish of Holne and immediately adjoining on the north side the existing filter house of the Council which lands form part of Inclosure No. 3 on the $\frac{1}{2500}$ Ordnance map of the said parish second edition 1905 :

Work No. 2 A filter house and filters situate on lands belonging to the Council the centre of such work being a point 10 chains or thereabouts measured in a northerly direction from the eastern end of the dam of the existing Venford Reservoir of the Council and 8 chains or thereabouts measured in a north-easterly direction from the western end of the said dam :

Work No. 3. An aqueduct conduit line or lines of pipes A.D. 1911.
commencing in the parish of Holne at a point in the dam
of the existing Venford Reservoir of the Council 100 yards
or thereabouts from the south-east end of the said dam
and terminating in the parish of Ipplepen at a point
one hundred yards or thereabouts south of Park Hill
Cross by a junction with the existing water main leading
from the said reservoir to Paignton.

6. In addition to the foregoing works the Council may upon Subsidiary
the said lands make and maintain all such cuts channels tunnels works.
adits pipes conduits culverts drains sluices overflows waste-water
channels gauges softening plant filter beds tanks banks walls
bridges embankments piers approaches engines machinery and
appliances as may be necessary or convenient in connexion with
or subsidiary to the before-mentioned works or any or either of
them but nothing in this section shall exonerate the Council
from any action indictment or other proceeding for nuisance in
the event of any nuisance being caused or permitted by them.

7. In the construction of the works authorised by this Act Limits of
the Council may deviate laterally to any extent not exceeding deviation.
the limits of lateral deviation shown on the deposited plans and
where on any road no such limits are shown the boundaries of
such road shall be deemed to be such limits and they may also
deviate vertically from the levels shown on the deposited sections
to any extent not exceeding three feet upwards and ten feet
downwards Provided as follows (that is to say):—

Except for the purpose of crossing over a stream no part of
the pipes shall be raised above the surface of the ground
unless shown on the deposited sections as intended to be
placed above the surface of the ground or to a greater
extent than is shown.

8. Subject to the provisions of this Act the Council may Power to
enter upon take and use such of the lands shown on the deposited take lands.
plans and described in the deposited book of reference as they
may require for or in connexion with the works authorised by
this Part of this Act.

9. The powers of the Council for the compulsory purchase Period for
of lands under this Act shall cease after the expiration of five compulsory
years from the passing of this Act. purchase of
lands.

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Period for
completion
of works.

10. If the works by this Part of this Act authorised are not completed within ten years from the passing of this Act the powers by this Act granted for the making thereof or otherwise in relation thereto shall cease except as to so much thereof as is then completed. Provided always that subject to the restrictions and provisions of this Act the Council may at any time after the expiration of the said period lay down additional lines of pipes and alter enlarge extend and renew their mains pipes and other works as they may think expedient to provide for the requirements of their water supply.

Works to
form part of
undertaking.

11. The works by this Part of this Act authorised shall for all purposes be deemed part of the water undertaking and the provisions of the Act of 1900 so far as the same are applicable and subject to the provisions of this Act shall extend and apply to the said works.

Council may
acquire ease-
ments only in
certain cases.

12.—(1) The Council may in lieu of acquiring any lands for the purposes of the works authorised by this Part of this Act where the same are intended to be constructed underground acquire such easements only in such lands as they may require for such purposes and may give notice to treat in respect of such easements describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts.

(2) As regards any lands in respect of which the Council have acquired easements only under the provisions of this section the Council shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements have the same rights to use and cultivate the said lands at all times as if this Act had not passed.

(3) Provided always that nothing in this section contained shall authorise the Council to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Council to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

Correction
of errors &c.
in deposited
plans and

13. If any omission misstatement or erroneous description is found to have been made of any lands or of any owners lessees or occupiers of any lands described or intended to be

described in the deposited plans or book of reference the A.D. 1911.
 Council may apply to two justices not being members of the book of
 Council for the correction thereof after giving ten days' notice reference.
 to the owners lessees and occupiers of the lands affected by the
 proposed correction and if it appears to such justices that the
 omission misstatement or erroneous description arose from mistake
 they shall certify the same accordingly stating the particulars
 of the omission misstatement or erroneous description and such
 certificate shall be deposited with the clerk of the peace for
 the county of Devon and a duplicate of the certificate shall
 also be deposited with the officer or the person with whom
 the plans or book of reference to which it relates were deposited
 and such certificate and duplicate respectively shall be kept
 with the other documents to which it relates and subject and
 according to the same enactments and provisions as apply to
 those other documents and thereupon the deposited plans or
 book of reference (as the case requires) shall be deemed to be
 corrected according to the certificate and the Council may enter
 on take hold and use those lands accordingly.

14. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

15. The quantity of land which may be taken by the Council from the common or commonable lands next herein-after mentioned for the purposes of the works by this Act authorised shall not exceed the quantity herein-after mentioned (that is to say):—

Works and Purposes for which Lands will be taken.	Name by which Lands are known.	Parish in which Lands are situate.	Quantity to be taken.
Work No. 3 and any subsidiary works connected therewith.	Holne Moor -	Holne - -	4 acres.

A.D. 1911. And no part of the lands so taken shall be fenced. Provided that the Council shall only take for the purposes of such work so much of the aforesaid common lands as is actually required for or in connexion with those purposes and that for so much of the line or lines of pipes as is intended to be laid beneath the surface of the ground the Council shall be restricted to an easement only for the purpose of laying constructing maintaining repairing and removing the said line or lines of pipes.

Limiting
powers of
Council to
abstract
water.

16. The Council shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament.

Amendment
of Act of
1900 as to
measuring
gauge.

17.—(1) Section 9 (As to compensation water) of the Act of 1900 is hereby amended by inserting the word "two" in place of the word "one" before "hundred yards" in subsection (3) thereof.

(2) The gauge required by section 9 of the Act of 1900 shall be self-recording and shall be erected to the satisfaction of the Board of Agriculture and Fisheries in such position and of such form as the said Board shall approve.

(3) The Council shall keep daily records of the quantity of water passing through the said gauge and such records shall be deposited weekly at the offices of the Council at Paignton and shall be open to inspection at all reasonable times by the said Board of Conservators who may take copies thereof.

Council may
provide
gauges.

18.—(1) The Council may provide place and maintain at any point or points in the stream known as the Venford Brook and above or below the Venford Reservoir such gauges and other apparatus for measuring the flow of the stream as they may consider necessary provided that in so doing they shall cause as little interference as possible with the natural flow of the stream.

(2) The said gauges shall be erected and maintained to the approval of the Board of Agriculture and Fisheries and in such manner as to interfere as little as reasonably practicable with the passage of fish up and down the said Venford Brook.

19. The Council shall in connexion with the filters by this Act authorised make and maintain adequate provision to the approval of the Board of Agriculture and Fisheries (if and when required by them) for safeguarding the Venford Brook from pollution arising from the washing from the said filters.

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Further provision as to filter washings.

20. The provisions of section 13 (For protection of Great Western Railway Company) of the Act of 1900 shall (*mutatis mutandis*) apply to the works authorised by and constructed under the powers of this Act.

For protection of Great Western Railway Company.

21. Before any person connects or disconnects any meter by means of which any of the water of the Council is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Council of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Council and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Notice to Council of connecting or disconnecting meters.

22. The Council may on the application of the owner or occupier of any premises within the district abutting on or being erected in any street laid out but not dedicated to public use supply such premises with water and for that purpose the Waterworks Clauses Acts 1847 and 1863 shall apply as if the street were a street within the meaning of those Acts.

Power to lay pipes in streets not dedicated to public use.

23. The Council shall not be compelled to furnish a supply of water for domestic purposes for any less sum than eight shillings and eightpence in any one year nor to any dwelling-house or part of a dwelling-house of which the rateable value amounts to or exceeds fifteen pounds for any less period than six months.

Minimum charge for domestic purposes.

24. The Council may supply water for other than domestic purposes on such terms and conditions as the Council think fit and may supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates or water rents. Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply.

Supply by measure.

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A.D. 1911. of water for domestic purposes throughout the limits of supply
Section 35 (Water supplied by agreement) and section 36 (Consumers to have option of supply by meter) of the Paignton Water Act 1867 and so much of section 32 of the Act of 1900 as relates thereto and subsection (c) of section 33 (Provisions as to water rates) of the Act of 1900 are hereby repealed.

Supply to
houses partly
used for
trade.

25.—(1) The Council shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required or any hospital public-house inn school boarding-house hotel hydropathic or public institution.

(2) Where a supply of water to a farmhouse is used for farming purposes the Council may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Council to refuse a supply of water for domestic purposes to a farmhouse at the ordinary rate calculated on the rateable value thereof.

Price of
supply by
measure.

26. The price to be charged for a supply of water by measure shall not exceed one shilling and sixpence per thousand gallons. Provided that the Council shall be entitled to charge for each such supply (other than a supply given under the provisions of the section of this Act the marginal note of which is "Supply to houses partly used for trade") such minimum sum not exceeding ten shillings as they may prescribe in respect of the water supplied in any quarter of a year.

Penalties for
injuring
meters.

27. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Council or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Council shall (without prejudice to any other right or remedy for the protection of the Council) be liable to a fine not exceeding five pounds and the Council may in addition thereto recover the amount of any damage by them sustained. And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings

belonging to the Council or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Council the Council may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Council by the person so offending and may be recovered by them as water rates are recoverable The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Council when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *primâ facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings. A.D. 1911.

28.—(1) The Council may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit. Power to sell or let meters.

(2) The provisions of section 14 of the Waterworks Clauses Act 1863 shall extend to authorise the Council to let for hire any water fittings to any person supplied by them with water.

(3) Section 38 (Power to let meters) of the Paignton Water Act 1867 as applied to the Council by section 32 of the Act of 1900 is hereby repealed.

29. Where water is supplied by measure the register of the meter or other instrument for measuring water shall be *primâ facie* evidence of the quantity of water consumed and in respect of which any water rate or rent is charged and sought to be recovered by the Council Provided that if the Council and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties any costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties. Register of meter to be *primâ facie* evidence.

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Detection of
waste.

30. Subject to the provisions of the Waterworks Clauses Act 1847 the Council may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Council and stop-cocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets roads lanes footways courts passages tramways gas or water pipes electric lines wires and apparatus Provided that the Council shall not interfere with any electric lines wires and apparatus belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Power to
Council to
supply ma-
terials.

31. The Council may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are required or permitted by their regulations and may provide all materials and do all work necessary or proper in that behalf and the reasonable charges of the Council in providing such materials and executing such work shall be paid by the person requiring the same.

Council not
bound to sup-
ply several
houses by
one pipe.

32. The Council shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the nearest main into each house supplied by them with water.

Notice of
discontinu-
ance.

33. A notice to the Council from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council.

Revision of
water rates.

34. Notwithstanding anything contained in the Act of 1900 or this Act the Council may with the sanction of the Local Government Board and after local inquiry by such Board at any time increase the water rates leviable by them by such amount as may be considered necessary in order to meet the estimated expenditure of the water undertaking of the Council.

Supply of
water by
hose-pipe to
stables &c.

35. When water supplied for domestic purposes is used for washing horses carriages or motor cars or for other purposes in stables or premises where horses carriages or motor cars are kept

the Council may if a hose-pipe or other similar apparatus is used charge such additional sum not exceeding twenty shillings per annum as they may prescribe and any sum charged under this section shall be recoverable in the same manner as water rates. A.D. 1911.

36. The Council may require that all premises situate on land at a higher level than three hundred and twenty feet above Ordnance datum to which a supply of water is furnished by them shall be provided with a cistern or cisterns capable of containing a total quantity of water sufficient to provide an adequate supply for such premises for a period of forty-eight hours and a cistern shall not be deemed to be a proper cistern within the meaning of section 54 of the Waterworks Clauses Act 1847 unless it is in conformity with the requirements of the Council under this section. Cisterns to be provided for high-level supplies.

PART III.

STREETS AND BUILDINGS.

37. When any street or road repairable by the inhabitants at large is in the opinion of the Council narrow or inconvenient or without sufficiently regular line of frontage or where in their opinion it is necessary or desirable that the line of frontage should be altered the Council may from time to time prescribe and define what shall thereafter be the line of frontage to be observed on either side of such street or road. The line which in any case the Council propose to prescribe and define shall be distinctly marked and shown on a plan to be signed by the chairman or clerk to the Council and deposited with the surveyor and such plan shall be at all reasonable times thereafter open for the inspection of the public without charge and one month at least before the Council formally prescribe and define the line they shall give notice in writing of the deposit of the said plan to every owner interested whose name and address they can ascertain. No new building erection excavation or obstruction (being of a permanent character) shall be made nearer to the centre of the street or road than such line. Council may define future line of streets.

The Council may and if required so to do by the owner shall purchase and the owner shall if required so to do by the Council sell the land for the time being unbuilt upon lying between any such line as aforesaid and the street or road and

A.D. 1911. the same when purchased shall vest in the Council as part of the street or road and the amount of purchase money shall in case of difference be settled by arbitration under the Arbitration Act 1889.

Whenever in any of the above cases the Council shall require the said line to be observed and kept they shall make full compensation to the owner and other persons interested in any land for any loss or damage they may sustain in consequence of the line of frontage being set back and the Council shall also make to the owner of any adjoining land or building and to all other persons interested in any such adjoining land or building full compensation in respect thereof for all damage loss or injury (if any) sustained by them to such land or building by reason of the Council requiring the said line to be observed and kept.

In estimating the amount of compensation or purchase money to be paid by the Council under this section the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of the street or road shall be fairly estimated and shall be set off against the said compensation or purchase money.

If after any such line has been defined and prescribed as aforesaid any person offends against the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Continuation
of existing
streets to be
deemed new
streets.

38. Every continuation of an existing street shall for the purposes of the Public Health Acts the Act of 1898 and this Act and of any byelaws made thereunder and for the time being in force within the district be deemed to be a new street.

Intersecting
streets.

39.—(1) No street shall be laid out exceeding three hundred and sixty feet in length without having a street at each end thereof and an intersecting street at intervals of not more than three hundred and sixty feet in any such street.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) For the purposes of this section "intersecting street" means a side or cross street forming a junction with or crossing another street.

40. When a road or lane becomes in consequence of building operations a new street within the meaning of the Public Health Act 1875 but the land on only one side of such street has been or is in course of being built on the Council may instead of requiring the owner of the land built on or in course of being built on to widen such road or lane to a width prescribed by the byelaws in force in the district require such owner to widen such road or lane so as to give a width not less than one half of such prescribed width from the old centre line of such road or lane to the boundary thereof adjoining such land. Provided that if and when the land on the opposite side of such road or lane shall be built on the Council shall require the owner of such land to complete the widening of such road or lane so as to give the complete width prescribed by the byelaws of the Council.

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—
Further provisions as to new streets and widenings.

41. Where premises abutting upon any street are so situate that the surface water from such premises flows on to the footpath of such street the owner of such premises shall within one month after service of an order of the Council for that purpose execute such works as may be necessary to prevent the water from such premises from flowing on to the footpath and in default of compliance with such order within the period aforesaid such owner shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding forty shillings:

For preventing water flowing on footpath.

Provided that after such works have been duly executed by and at the expense of the owner any necessary repairs to the footpath shall be executed by and at the expense of the Council.

42. The owner of any dwelling-house which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings unless the dwelling-house was erected before the passing of this Act and such supply is not available.

Provisions as to houses without water supply.

43. The owner or owners of premises the occupiers of which use in common any court yard or passage (not being a highway repairable by the inhabitants at large) or any part of such court yard or passage shall flag asphalt concrete or pave such court yard or passage or any part thereof and make

Courts to be flagged.

A.D. 1911. a drain through or along the same or such part thereof as the Council require and keep such flagging asphaltting concreting or paving and drain-in good repair and if such owner or owners for one month after notice in writing from the Council fail in any respect to comply with this provision he or they shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings and the Council may themselves if they think fit do the work and recover the expense incurred by them in that behalf from such owner or owners summarily.

Means of
escape from
buildings in
case of fire.

44.—(1) In the case of every new building exceeding thirty-five feet in height (used or intended to be used as a tavern hotel hospital boarding-house common lodging-house or school) there shall be provided on the storeys the upper surface of the floor whereof is above twenty feet from the street level such means of escape in the case of fire for the persons dwelling or employed therein as may be reasonably required under the circumstances of the case and no such building shall be occupied until the Council shall have issued a certificate that the provisions of this subsection have been complied with in relation thereto.

(2) The means of escape in case of fire provided in any building in pursuance of this section shall be maintained in good and efficient condition and free from obstruction.

(3) Nothing in this section contained shall be deemed to interfere with the operation of sections 14 and 15 of the Factory and Workshop Act 1901 or of any Act amending the same.

(4) Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Area of
habitable
rooms.

45.—(1) Every new dwelling-house shall be provided with at least one living room with a floor area of not less than one hundred and fifteen square feet and one bedroom with a floor area of not less than one hundred and ten square feet.

(2) No bedroom or other habitable room in any such dwelling-house shall have less floor area than ninety square feet.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

46. Nothing in this Part of this Act shall apply to any building (not being a dwelling-house) belonging to the Great Western Railway Company and used by such company as a part of or in connexion with their railway under any Act of Parliament.

A.D. 1911.
Saving for
Great West-
ern Railway
Company.

PART IV.

SEWERS AND DRAINS.

47. The powers given by section 19 (Extension of 38 and 39 Vict. cap. 55. s. 41) of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner.

Amendment
of section 19
of Public
Health Acts
Amendment
Act 1890.

48.—(1) If it appears to the Council that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Council may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Council if they so decide or by the owners in such manner as the Council shall direct and the costs and expenses of such combined drain and the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Council shall determine and if such drain is constructed by the Council such costs and expenses may be recovered by the Council from such owners.

Council may
order houses
to be drained
by a com-
bined drain.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

(3) Provided that the Council shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by them.

49. If in any street not repairable by the inhabitants at large the Council for the purpose of main drainage or otherwise shall require a larger sewer to be made than they consider necessary for the ordinary sewerage of such street the person laying out such street shall construct such enlarged sewer in accordance with the requirements of the Council and the additional cost thereof as ascertained by the surveyor shall be paid by the Council.

Council may
require en-
larged sewer.

A.D. 1911.

Council may
make com-
munications
between pri-
vate drains
and their
sewers on
payment.

50. If the owner or occupier of any premises desires that the sewer or drain from such premises shall be made to communicate with any sewer of the Council such communication shall be made by the Council upon the cost or estimated cost of making the communication being paid to the Council or the payment thereof to them being secured to their satisfaction and the Council may execute all works necessary for that purpose.

Power to lay
drains in pri-
vate streets.

51. The Council may on the application and at the expense of any person owning or occupying premises abutting or fronting on any street not repairable by the inhabitants at large wherein a sewer has been laid lay down take up alter relay or renew in across or along such street such drains as may be requisite or proper for connecting such premises with the sewer doing as little damage as may be in the execution of the powers hereby granted and making compensation for any damage which may be done in the execution of such powers such compensation to be ascertained by and recovered before a court of summary jurisdiction.

Reconstruc-
tion of
drains.

52. It shall not be lawful for any person to reconstruct or alter the course of any drain communicating with any sewer of the Council except in accordance with the provisions of the byelaws relating to the drainage of existing buildings.

Any person offending against this section shall be liable to a penalty not exceeding five pounds, and to a daily penalty not exceeding twenty shillings.

Notice of in-
tention to
repair drains.

53.—(1) It shall not be lawful for any person to repair any drain communicating with any sewer of the Council without giving to the Council or the medical officer twelve hours' previous notice in writing of his intention to do so except in the case of emergency and in that case it shall not be lawful for any person to cover over the drain without giving the like notice of his intention to do so.

(2) Free access to such drain or work of repair shall be afforded to the inspector of nuisances or any officer of the Council authorised in writing by the medical officer for the purpose of inspection.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

54. If a watercloset drain or soil pipe is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such construction or repair was not due to any wilful act neglect or default be liable to a penalty not exceeding twenty pounds. Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he proves to the satisfaction of the court that he had used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any penalty and the said other person may be summarily convicted of the offence.

A.D. 1911.
 Improper
 construction
 or repair of
 watercloset
 or drain.

55. If any person causes any drain watercloset earthcloset privy or ashpit to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging the same or any water supply apparatus pipe or work connected therewith or by otherwise wilfully stopping up or wilfully interfering with or improperly using the same or any such water supply apparatus pipe or work he shall be liable to a penalty not exceeding five pounds. Provided that nothing in this section shall prejudice any right which the owner or occupier of any premises aggrieved by any such act may have to recover compensation in respect of any damage suffered by him by reason of such act.

Penalty for
 wilful
 damage to
 drains and
 waterclosets.

PART V.

SANITARY PROVISIONS.

56. The Council may provide and maintain orderly bins for the collection and temporary deposit of street refuse in upon or under the streets of the district of such dimensions and in such positions as they may from time to time determine.

Street
 orderly bins.

57.—(1) At any time after the passing of this Act the Council may—

(A) Acquire by agreement any premises within the district used for the purpose of slaughtering cattle (hereinafter referred to as a “slaughter-house”) and the

Slaughtering
 prohibited
 except in
 Council
 slaughter-
 houses when
 provided.

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interest or interests of any owner lessee and occupier of such premises :

(B) Agree with the owner lessee and occupier of any slaughter-house for the abolition of slaughtering therein on such terms and conditions as may be arranged between the parties.

(2) At any time after the expiration of three years from the passing of this Act and after the Council have provided adequate slaughter-house accommodation conveniently situate (to the satisfaction of the Local Government Board) and after the expiration of six calendar months from the date of publication by the Council in a local newspaper circulating in the district of notice to that effect no person shall slaughter in the way of trade any cattle within the district except in slaughter-houses provided by the Council but this shall not apply to the slaughtering on premises by the owner lessee or occupier thereof of any cattle belonging to him and not slaughtered for the purpose of trade and if any person acts in contravention of this section he shall be liable for each offence to a penalty not exceeding five pounds :

Provided that nothing in this section shall prevent a farmer from slaughtering on land occupied by him for agricultural purposes only any cattle belonging to him with the consent of the Council or in case of emergency without such consent but no part of the carcase of any animal so slaughtered by a farmer shall be removed from the farm until after inspection by the medical officer or the inspector of nuisances such inspection to be made within a reasonable time.

(3) The Council shall pay compensation to the owner lessee and occupier of every slaughter-house who may be injuriously affected by the exercise of the above powers and the amount of such compensation shall in case of difference be settled as cases of disputed compensation are settled under the Lands Clauses Acts and the provisions of those Acts shall apply accordingly.

(4) The fees and charges to be demanded and received by the Council in respect of the use of any slaughter-house provided by them or of any convenience connected therewith shall be regulated by byelaws to be approved by the Local Government Board and the Council may make byelaws accordingly provided that the Council shall have power to charge for separate

accommodation in any slaughter-house such weekly monthly or other rent as may be agreed upon by the Council and the renters. A.D. 1911.

(5) Nothing in this section shall interfere with the operation or effect of the Diseases of Animals Act 1894 or of any order or licence of the Board of Agriculture and Fisheries made or granted thereunder.

58.—(1) It shall not be lawful to blow or inflate the carcase or any part of the carcase of any animal slaughtered within or brought into the district. Prohibition of blowing or inflating carcasses.

(2) Any person who shall offend against the provisions of subsection (1) of this section or shall expose or deposit for sale within the district a carcase so blown or inflated or any part thereof shall be liable to a penalty not exceeding twenty shillings.

59.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice cream or other similar commodity who— For regulating manufacture and sale of ice cream.

(A) Causes or permits ice cream or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any sleeping room or in any room cellar or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain; or

(B) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination; or

(C) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer;

shall be liable to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice cream or similar commodity) suffering from any infectious disease the medical officer may seize and destroy all ice cream or similar commodity or materials for the manufacture of the same in such building and the Council shall compensate the owner of the ice cream commodity or materials so destroyed.

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(3) Every dealer in ice cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand shall have his name and address legibly painted or inscribed on such cart barrow vehicle or stand and any person who shall fail to comply with this subsection shall be liable to a penalty not exceeding forty shillings.

Inspection of
premises of
dealer in ice
cream.

60.—(1) Any officer duly authorised by the Council in that behalf shall at all reasonable times have the same power of entry and inspection into and of the premises of any manufacturer or vendor of or merchant or dealer in ice cream or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein as an officer of the Council would have under section 102 (Power of entry of local authority) of the Public Health Act 1875 in the cases therein mentioned.

(2) Any person refusing entry into such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings for each offence.

Public notice
to be given
of provisions
of this Part
of Act.

61.—(1) Public notice of the foregoing provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the district and by a notice affixed outside the offices of the Council and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section have been complied with.

PART VI.

FINANCIAL PROVISIONS.

Power to
borrow.

62. The Council may for the purposes herein-after mentioned from time to time (in addition to any other moneys which they are now authorised to borrow) borrow at interest:—

(1) For the purchase of land for and the construction of the waterworks by this Act authorised on the security of the revenue of the water undertaking

and the district fund and general district rate any sums not exceeding twenty-seven thousand five hundred pounds; A.D. 1911.

- (2) For the payment of the costs charges and expenses referred to in the section of this Act whereof the marginal note is "Costs of Act" on the security of the district fund and general district rate any sums not exceeding the amount ascertained as in that section provided;

and with the approval of the Local Government Board such further sums as the Council may require for the purposes of the water undertaking on the security of the revenue of the water undertaking and the district fund and general district rate and for any other of the purposes of this Act on the security of the district fund and general district rate Provided that the provisions of this section shall not limit the powers conferred upon the Council by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes."

63. The Council may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others Provided that the provisions contained in the section of this Act whereof the marginal note is "Sinking fund" shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act. Mode of raising money.

64. The following sections of the Public Health Act 1875 (that is to say):— Provisions as to mortgages.

Section 236 (Form of mortgage);

Section 237 (Register of mortgages);

Section 238 (Transfer of mortgages);

Section 239 (Receiver may be appointed in certain cases);

shall (subject to the provisions of the section of this Act the marginal note of which is "Power to use one form of mortgage for all purposes") apply to and in relation to all mortgages made under the powers of this Act as if they were with necessary modifications re-enacted in this Act.

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A.D. 1911.

Periods for
payment off
of borrowed
money.

65. The Council shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed period") following (that is to say):—

As to moneys borrowed for the purpose (1) in the section of this Act whereof the marginal note is "Power to borrow" within sixty years from the date or dates of borrowing the same;

As to moneys borrowed for the purpose (2) in the said section within five years from the passing of this Act;

and with respect to moneys borrowed by the Council under the authority of this Act with the consent of the Local Government Board within such term not exceeding sixty years as such Board may prescribe.

Mode of
payment off
of money
borrowed.

66. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months if by yearly repayments or within six months if by half-yearly repayments from the time of borrowing the sum in respect of which the payment is made.

Sinking
fund.

67.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed and maintained either—

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called "a non-accumulating sinking fund"; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called "an accumulating sinking fund."

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in any statutory security the Council being at liberty from time to time to vary and transpose such investments. A.D. 1911.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to

A.D. 1911. make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Council with the consent of the Local Government Board may determine.

Power to re-
borrow.

68.—(1) The Council shall have power—

- (a) to borrow for the purpose of paying off any moneys previously borrowed under this Act which are intended to be forthwith repaid; or
- (b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under this Act and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section. A.D. 1911.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (A) by instalments or annual payments; or
- (B) by means of a sinking fund; or
- (C) out of moneys derived from the sale of land; or
- (D) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

69.—(1) Where the Council have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section. Power to use one form of mortgage for all purposes.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and place of payment and shall be sealed with the common seal of the Council and may be made in the form contained in the schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Council.

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(5) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the repayment of the principal sums and interest secured by mortgages granted under this section and all such sums and interest shall be paid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been payable respectively if this section had not been enacted.

(6) There shall be kept at the office of the Council a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the clerk or other person having the custody of the same and refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(7) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the schedule to this Act or to the like effect.

(8) There shall be kept at the clerk's office a register of the transfer of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Council shall not be in any manner responsible to the transferee.

(9) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby.

(10) If the clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds. A.D. 1911.

70. The provisions of section 131 (Power of local authority to provide hospitals) of the Public Health Act 1875 shall be extended so as to enable the Council to subscribe to any hospital infirmary nursing institution or other institution of a similar character within the district any sums not exceeding in the aggregate in respect of any one year the sum of twenty-five pounds. Power to Council to subscribe to hospitals.

71. The Council shall apply all moneys received by them in respect of any sales exchanges or disposition of lands or premises or any interest therein or by way of fine or premium on any lease of lands or premises made under the authority of this Act and any other moneys received by the Council on capital account under this Act in or towards paying off any moneys borrowed and for the time being owing by the Council under this Act to which such capital moneys would be properly applicable or if there shall be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Council on capital account Provided that such moneys received shall not be applicable to the payment of instalments appropriations or annual repayments or to payments into sinking fund except to such extent and upon such terms as may be approved by the Local Government Board. Application of moneys arising from sale of lands.

72.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which Return to Local Government Board as to repayment of debt.

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A.D. 1911. have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Saving for
existing
charges.

73. Nothing in this Act shall prejudicially affect any charge on the revenue and rates or the estates and property of the Council subsisting at the passing of this Act and every mortgagee or person for the time being entitled to the benefit of any such charge shall have the like rights and remedies in respect of the revenue rate and property subject to his charge as if this Act had not passed.

Expenses of
execution of
Act.

74. All expenses incurred by the Council in carrying into execution the provisions of this Act (except such as are to be paid out of borrowed money or are otherwise provided for) shall be paid out of the district fund and general district rate.

PART VII.

A.D. 1911.

MISCELLANEOUS.

75. Save as herein expressly provided all informations and complaints under and for the breach of any of the provisions of this Act the Act of 1898 the Act of 1900 or the Public Health Acts or of any byelaws made thereunder or of the Town Police Clauses Act 1847 or of the Towns Improvement Clauses Act 1847 as incorporated with the Public Health Act 1875 or the Town Police Clauses Act 1889 may be laid and made by any officer of the Council duly authorised in that behalf or by the clerk or by any police officer acting for or within the district.

Informations
by whom to
be laid.

76. The provisions with respect to byelaws contained in sections 182 to 186 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Council under the powers of this Act Provided that no byelaws affecting the foreshore below high-water mark shall come into operation until the consent of the Board of Trade has been given thereto.

General pro-
visions as to
byelaws.

77. Save as otherwise expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof or under any local Act or order or byelaw made thereunder may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of
penalties &c.

78. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of
demands.

79. All the powers rights and remedies given to the Council by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Council or such committee

Powers of
Act cumu-
lative.

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A.D. 1911. as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed. Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

Persons acting in execution of Act not to be personally liable.

80. No matter or thing done or contract entered into by the Council nor any matter or thing done by the clerk or by any member or officer of the Council or any person whomsoever acting under the direction of the Council shall if the matter or thing be done or the contract be entered into bonâ fide for the purpose of executing this Act subject them or any of them personally to any action liability claim or demand whatsoever and any expense incurred by the Council or clerk member officer or person acting as last aforesaid shall be borne and repaid out of any of the funds at the disposal of the Council.

Judges not disqualified.

81. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act or any local Act by reason of his being liable to any rate.

Inquiries by Local Government Board.

82.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as inspectors of the Local Government Board have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Council shall pay to the Local Government Board any expenses incurred by such Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by such Board not exceeding three guineas a day for the services of such inspector.

Evidence of appointments authority &c.

83. Where in any legal proceedings taken by or on behalf of the Council whether under this Act or under any general or local Act passed before or after this Act it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution of the Council or of any committee of the Council a certificate of such appointment

authority or resolution purporting to be authenticated by the signature of the chairman of the Council or the clerk shall be primâ facie evidence of such appointment authority or resolution without further proof of the holding of any meeting or the production of any minute book or other record or document. A.D. 1911.

84.—(1) Where any notice or demand under this Act or under any local Act Provisional Order or byelaw for the time being in force within the district requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication. Authentication and service of notices &c.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Provisional Order or byelaw for the time being in force within the district may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

85. Where the payment of more than one sum by any person is due under this Act or any of the Acts or Orders relating to the Council any summons or warrant issued for the purposes of such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him. Summons or warrant may contain several sums.

86. The following provisions of the Paignton Water Act 1867 which are continued in force and made applicable to the Council by section 32 of the Act of 1900 are hereby repealed (that is to say):— Repeal of certain provisions of Paignton Water Act 1867.

Section 40 (Incoming tenant not to be liable for arrears of water rents);

Section 46 (Several names and sums in one warrant);

Section 47 (Costs of distress).

87. Subject to the provisions of this Act the following sections of the Act of 1898 shall apply for the purposes of this Act as if the same were with any necessary modifications re-enacted herein (namely):— Application of certain provisions of Act of 1898.

Section 78 (Certain regulations of Public Health Act 1875 as to borrowing not to apply);

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Section 86 (Protection of lender from inquiry);

Section 87 (Council not to regard trusts);

Section 89 (Application of moneys borrowed);

Section 94 (As to appeal);

Section 96 (Penalties to be paid to treasurer);

Section 97 (Saving as to indictments).

Repeal of
certain pro-
visions of
Act of 1898.

88. The following sections of the Act of 1898 are hereby
repealed:—

Section 92 (Informations may be laid by duly authorised
officer);

Section 93 (Authentication and service of notices);

Section 95 (Recovery of penalties);

Section 98 (Judge not to be disqualified by payment of
rates).

Crown
rights.

89. Nothing in this Act affects prejudicially any estate
right power privilege or exemption of the Crown.

Costs of Act.

90. The costs charges and expenses preliminary to and of
and incidental to preparing and obtaining this Act including the
costs charges and expenses preliminary to and of and connected
with the compliance with the requirements of the Borough Funds
Acts 1872 and 1903 as taxed by the taxing officer of the House
of Lords or the House of Commons shall be paid by the Council
out of the district fund and general district rate or out of
moneys to be borrowed under the authority of this Act.

The SCHEDULE referred to in the foregoing Act. A.D. 1911.

FORM OF MORTGAGE.

THE URBAN DISTRICT OF PAIGNTON.

By virtue of the Paignton Urban District Council Act 1911 and of any other powers in that behalf then enabling the Paignton Urban District Council (herein-after called "the Council") in consideration of the sum of pounds paid to the treasurer of the Council by (herein-after called "the mortgagee") do hereby grant and assign unto the mortgagee (his) executors administrators and assigns such proportion of the revenues of the Council in the said Act defined as the said sum of £ so paid doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee (his) executors administrators and assigns from the day of the date of these presents until the said sum of shall be fully paid and satisfied with interest for the same at the rate of per centum per annum from the day of one thousand nine hundred and until payment of the said principal sum such interest to be paid half yearly on the thirtieth day of June and the thirty-first day of December in each year And it is hereby agreed that the said principal sum of pounds shall be repaid at the office of the Council in the urban district of Paignton on the day of one thousand nine hundred and :

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be mentioned and specified in an endorsement to be made hereon under the hands of the chairman and clerk of the Council for the time being respectively and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Council have caused their common seal to be hereunto affixed this day of one thousand nine hundred and .

